

to include civil claims within the scope of their settlement.” (*Ibid.*)

Plaintiff here represented that she knew the scope of the release and is bound to that representation. She acknowledged that she read the agreement and “fully underst[ood]” its “intent and purpose.” Plaintiff further represented that she had been given the opportunity to consult with counsel (the evidence reflects she was, in fact, represented by counsel) and that she was presented with “an adequate opportunity” to “consider the agreement and its consequences.”

“The general rule is that when a person with the capacity of reading and understanding an instrument signs it, [s]he is, in the absence of fraud and imposition, bound by its contents, and is estopped from saying that its provisions are contrary to his intentions or understanding” (*Edwards v. Comstock Insurance Co.* (1988) 205 Cal.App.3d 1164, 1167.) In other words, “one party is not permitted to escape from its obligation by showing that he did not intend to do what his words bound him to do.” (*Crow v. P.E.G. Construction Co.* (1957) 156 Cal.App.2d 271, 278.)

Because vicarious liability is the only theory alleged against the State, it too is entitled to rely on the settlement agreement as a complete defense. Defendants have met their initial burden to show entitlement to judgment as a matter of law.

B. Plaintiff’s Evidence Does Not Raise Material Factual Disputes

Many of plaintiff’s purported disputes regarding the facts are not true disputes. For example, plaintiff asserts a dispute to Facts 16 and 17 in the basis that Officer Thomas’ self-serving declaration is the only evidence for when and why he arrived at the scene, but also admits she has no personal knowledge about this fact or whether Ms. Thomas called him. Other purported disputes are only to the “implications” or “characterizations” plaintiff contends are raised (e.g., Fact Nos. 18-19, 22-23), or to the “completeness” of the facts to which she seeks to add context (e.g. Fact No. 21). In any event, none of the purported disputes are material to the grounds for summary judgment here.

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Summary judgment is warranted here and the Court need not proceed to analyze the issues presented for summary adjudication.

5. 9:00 AM CASE NUMBER: C23-02721
CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC
***HEARING ON MINOR'S COMPROMISE RE: MAYORI RIVAS**
FILED BY: ESCOBAR , MATIAS RIVAS
TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Mayori Rivas’s (“Minor”) Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC (“Petition”). For the reasons stated below, the Court **grants** the Petition.

Background

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.

At this time, Defendant has offered \$97,500.00 to resolve all claims. The majority of the resolution is to go to the parents, Matias Rivas Escobar and Ana Ramirez, given the nature of the varied damages. Of this total resolution, \$2,500 is allocated to Minor. Of this \$2,500, the only deduction is for attorneys' fees in the amount of \$625.00, or 25%. Minor therefore is to receive \$1,875.00.

Given the amount of the resolution, Petitioner is seeking the award to be paid to him, without bond, pursuant to Probate Code sections 3401-3502. The amount is clearly within the Code, although the Court has no representations that Petitioner is able to make the verification to the payor pursuant to Probate Code section 3401(c)(2). If Petitioner is unable to make such verified attestation, he will need to return to Court to seek alternate payment.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on December 17, 2025.

6. 9:00 AM CASE NUMBER: C23-02721
CASE NAME: MATIAS ESCOBAR VS. 1630 CLAYTON & 1650/1730 PINE STREET ASSOCIATES, LLC
***HEARING ON MINOR'S COMPROMISE RE: CHRISTOFHER RIVAS**
FILED BY: ESCOBAR , MATIAS RIVAS
TENTATIVE RULING:

Summary

Petitioner and Guardian Ad Litem Matias Rivas Escobar filed on December 17, 2025 a Petition for Approval of Compromise of Minor Christofher Rivas's ("Minor") Claim Against 1630 Clayton & 1650/1730 Pine Street Associates LLC ("Petition"). For the reasons stated below, the Court **grants** the Petition.

Background

On October 26, 2023, Petitioner on his own behalf with co-Plaintiffs Ana Ramirez and minors Jefersson Rivas, Christofher Rivas, and Mayori Rivas filed a complaint against Defendant 1630 Clayton & 1650/1730 Pine Street Associates LLC for breach of contract, breach of implied warrant of habitability, nuisance, negligence, and intentional infliction of emotional distress. Minor suffered no medical injuries and sought no treatment.